

23SMCV03296 23SMCV03296

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-27

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Case Number: 23SMCV03296 Hearing Date: July 27, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

YOSI YAHOUDAI,

Plaintiff,

v.

CRAFTSCAPE CREATIONS, LLC, et al.,

Defendants.

Case No.:

24SMCV00037

Hearing Date: 7/27/26

Trial Date:

N/A

[TENTATIVE] RULING RE:

MOTION TO VACATE JUDGMENT

Background

Plaintiff Yosi

Yahoudai (Plaintiff) filed this action against defendants Craftscape Creations, LLC, Stylarc, LLC (initially Doe 3), and other entities on January 4, 2024, asserting claims for breach of contract, fraud, and related causes of action.

On April

28, 2025, defendant Stylarc (Defendant) moved to vacate the judgment pursuant to Code of Civil Procedure section 473.5. After the Court denied the motion on procedural grounds, Defendant refiled its motion on June 8, 2026.

On June 29, 2026, Plaintiff filed

his opposition to Defendant's motion, and on July 6, 2026, Defendant replied.

Request for Judicial Notice

Defendant requests judicial notice

of (1) several filings in this case, (2) Defendant's Articles of Organization filed with the Wyoming Secretary of State and facts regarding that filing, and (3) a provision of Wyoming state law. The requests are GRANTED in their entirety.

Evidentiary Objections

Plaintiff asserts several

objections to Defendant's evidence in support of its motion. The Court rules as follows:

Objection No.

Ruling

1

Sustained for lack of foundation and improper secondary evidence.

2-3

Sustained for irrelevance.

4

Sustained for lack of foundation.

5

Sustained for improper legal argument.

6-7

Overruled.

8

Sustained for lack of foundation.

9-15

Overruled.

Plaintiff also asserts objections to Defendant's evidence advanced for the first time in support of its reply. The Court sustains the objections in their entirety. The evidence advanced in support of Defendant's reply could and should have been presented in support of the arguments in its motion, as it goes directly to the merits of Defendant's arguments and does not solely respond to arguments raised in opposition. Plaintiff was deprived of an opportunity to question the substance and/or credibility of this evidence by Defendant's failure to submit it with sufficient notice.

Procedural Matters

Defendant objects to substantive arguments made in Plaintiff's objections to Defendant's evidence in support of its reply. Defendant's objection is sustained as to substantive arguments that go to the merits of Defendant's motion, which are asserted without leave of Court.

Plaintiff also

filed a sur-reply correctly identified as such on July 20, 2026 without leave of Court. The Court rejects arguments in the sur-reply as procedurally improper for the same reason.

Standard to Vacate Judgment

“When service of a

summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.”

(Code Civ. Proc.,
§ 473.5(a).)

Analysis

First:

the Court does not regard this motion as a motion for reconsideration under Code of Civil Procedure section 1008. Defendant has filed a renewed motion after denial of its prior motion solely on procedural grounds. Defendant does not ask the Court to reconsider the procedural grounds for the denial; Defendant cured the procedural defect and filed a new, compliant motion.

Second:

Plaintiff shows Defendant received actual notice. Plaintiff contends Defendant received actual notice because Allen Michael Abraham was its president and Aleshia Hoover was its owner and resided with Abraham when the complaint was served, thus she “reasonable received notice at that time as well.” (Opp., 2:17-18.) Plaintiff supports this assertion with citation to a bankruptcy filing – admitted without objection – where Hoover indicated she lived with Abraham at the time the summons and complaint were personally served on Abraham. (Kashfian Decl., ¶ 12 and Exh. 13.) Other exhibits show that in November 2023, January 2024, and February 2024, Abraham and Hoover were co-defendants in multiple legal proceedings. (Id., ¶ 17 and Exhs. 23-25.) Against these

declarations Abraham and Hoover offer only their conclusory statements that they did not receive notice – which, although they are admitted over Plaintiff's objection, are insufficient to overcome Plaintiff's considerable evidence otherwise.

Third:

Defendant's motion is untimely. Plaintiff shows, and Defendant does not overcome the showing, that Plaintiff served Notice of Entry of Judgment on Defendant's correct agent for service of process in Wyoming by U.S. Mail on December 19, 2024. (Kashfian Decl., Exh. 8.) Defendant's time to move under section 473.5 expired 180 days from that date (Code Civ. Proc., § 473.5(a)), which has long since lapsed.

Conclusion

For the foregoing reasons, Defendant's motion is DENIED.

Dated: July 27, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court